

Cirque Corporation

Employee Handbook - Extract

Generated: January 12, 2026

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Section 1 - Governing Principles of Employment 1-1. Welcome Statement For those of you who are commencing employment with Cirque Corporation ("Cirque Corporation" or the "Company"), on behalf of Cirque Corporation, welcome. We hope you will enjoy your work here. We are glad to have you with us. For those of you who have been with us, thank you for your past and continued service. We understand that it is our employees who provide the services that our customers rely upon, and who will grow and enable us to create new opportunities in the years to come. 1-2. Equal Employment Opportunity Cirque Corporation is an Equal Opportunity Employer that does not discriminate on the basis of actual or perceived race, creed, color, religion, alienage or national origin, ancestry, citizenship status, age, disability or handicap, sex, marital status, veteran status, sexual orientation, genetic information, arrest record, or any other characteristic protected by applicable federal, state or local laws. Our management team is dedicated to this policy with respect to recruitment, hiring, placement, promotion, transfer, training, compensation, benefits, employee activities and general treatment during employment. The Company will endeavor to make a reasonable accommodation to the known physical or mental limitations of qualified employees with disabilities unless the accommodation would impose an undue hardship on the operation of our business. If you need assistance to perform your job duties because of a physical or mental condition, please let the HR Director know. The Company will endeavor to accommodate the sincere religious beliefs of its employees to the extent such accommodation does not pose an undue hardship on the Company's operations. If you wish to request such an accommodation, please speak to the HR Director. Any employees with questions or concerns about equal employment opportunities in the workplace are encouraged to bring these issues to the attention of the HR Director. The Company will not allow any form of retaliation against individuals who raise issues of equal employment opportunity. If an employee feels he or she has been subjected to any such retaliation, he or she should bring it to the attention of the HR Director. To ensure our workplace is free of artificial barriers, violation of this policy including any improper retaliatory conduct will lead to discipline, up to and including discharge. All employees must cooperate with all investigations.

1-3. Non-Harassment It is Cirque Corporation's policy to prohibit intentional and unintentional harassment of any individual by another person on the basis of any protected classification including, but not limited to, race, color, national origin, disability, religion, marital status, veteran status, sexual orientation or age. The purpose of this policy is not to regulate our employees' personal morality, but to ensure that in the workplace, no one harasses another individual. If the employee feels that he or she has been subjected to conduct which violates this policy, the employee should immediately report the matter to their Supervisor. If the employee is unable for any reason to contact this person, or has not received a satisfactory response within five (5) business days after reporting any incident of what the employee perceives to be harassment, the employee should contact a member of management. If the person toward whom the complaint is directed is one of the individuals indicated above, the employee should contact any higher-level manager in his or her reporting hierarchy. Every report of perceived harassment will be fully investigated and corrective action will be taken where appropriate. All complaints will be kept confidential to the extent possible, but confidentiality cannot be guaranteed. In addition, the Company will not allow any form of

retaliation against individuals who report unwelcome conduct to management or who cooperate in the investigations of such reports in accordance with this policy. If an employee feels he or she has been subjected to any such retaliation, he or she should report it in the same manner in which the employee would report a claim of perceived harassment under this policy. Violation of this policy including any improper retaliatory conduct will result in disciplinary action, up to and including discharge. All employees must cooperate with all investigations. 1-4. Sexual Harassment It is Cirque Corporation's policy to prohibit harassment of any employee by any Supervisor, employee, customer or vendor on the basis of sex or gender. The purpose of this policy is not to regulate personal morality within the Company, it is to ensure that at the Company all employees are free from sexual harassment. While it is not easy to define precisely what types of conduct could constitute sexual harassment and there is a wide range of behavior that may violate this policy even if such behavior does not violate the law. Examples of prohibited behavior include unwelcome sexual advances, requests for sexual favors, obscene gestures, displaying sexually graphic magazines, calendars or posters, sending sexually explicit e-mails, text messages and other verbal or physical conduct of a sexual nature, such as uninvited touching of a sexual nature or sexually related comments. Depending upon the circumstances, improper conduct also can include sexual joking, vulgar or offensive conversation or jokes, commenting about an employee's physical appearance, conversation about your own or someone else's sex life, or teasing or other conduct directed toward a person because of his or her gender which is sufficiently severe or pervasive to create an unprofessional and hostile working environment.

If you feel that you have been subjected to conduct which violates this policy, you should immediately report the matter to your Supervisor. If you are unable for any reason to contact this person, or if you have not received a satisfactory response within five (5) business days after reporting any incident of what you perceive to be harassment, please contact any member of management. If the person toward whom the complaint is directed is one of the individuals indicated above, you should contact any higher-level manager in your reporting hierarchy. Every report of perceived harassment will be fully investigated and corrective action will be taken where appropriate. All complaints will be kept confidential to the extent possible, but confidentiality cannot be guaranteed. In addition, the Company will not allow any form of retaliation against individuals who report unwelcome conduct to management or who cooperate in the investigations of such reports in accordance with this policy. If you feel you have been subjected to any such retaliation, report it in the same manner you would report a claim of perceived harassment under this policy. Violation of this policy including any improper retaliatory conduct will result in disciplinary action, up to and including discharge. All employees must cooperate with all investigations. 1-5. Workplace Violence Cirque Corporation is strongly committed to providing a safe workplace. The purpose of this policy is to minimize the risk of personal injury to employees and damage to Company and personal property. We do not expect you to become an expert in psychology or to physically subdue a threatening or violent individual. Indeed, we specifically discourage you from engaging in any physical confrontation with a violent or potentially violent individual. However, we do expect and encourage you to exercise reasonable judgment in identifying potentially dangerous situations. Experts in the mental health profession state that prior to engaging in acts of violence, troubled individuals often exhibit one or more of the following behaviors or signs: over-resentment, anger and hostility; extreme agitation; making ominous threats such as bad things will happen to a particular person, or a catastrophic event will occur; sudden and significant decline in work performance; irresponsible, irrational, intimidating, aggressive or otherwise inappropriate behavior; reacting to questions with an antagonistic or overtly negative attitude; discussing weapons and their use, and/or brandishing weapons in the workplace; overreacting or reacting harshly to changes in Company policies and procedures; personality conflicts with co-workers; obsession or preoccupation with a co-worker or Supervisor; attempts to sabotage the work or equipment of a co-worker; blaming others for

mistakes and circumstances; demonstrating a propensity to behave and react irrationally

Prohibited Conduct Threats, threatening language or any other acts of aggression or violence made toward or by any Company employee WILL NOT BE TOLERATED. For purposes of this policy, a threat includes any verbal or physical harassment or abuse, any attempt at intimidating or instilling fear in others, menacing gestures, flashing of weapons, stalking or any other hostile, aggressive, injurious or destructive action undertaken for the purpose of domination or intimidation. To the extent permitted by law, employees and visitors are prohibited from carrying weapons onto Company premises. Procedures for Reporting a Threat All potentially dangerous situations, including threats by co-workers, should be reported immediately to any member of management with whom you feel comfortable. Reports of threats may be maintained confidential to the extent maintaining confidentiality does not impede our ability to investigate and respond to the complaints. All threats will be promptly investigated. All employees must cooperate with all investigations. No employee will be subjected to retaliation, intimidation or disciplinary action as a result of reporting a threat in good faith under this policy. If the Company determines, after an appropriate good faith investigation, that someone has violated this policy, the Company will take swift and appropriate corrective action. If you are the recipient of a threat made by an outside party, please follow the steps detailed in this section. It is important for us to be aware of any potential danger in our offices. Indeed, we want to take effective measures to protect everyone from the threat of a violent act by an employee or by anyone else. 1-6. Non-Disclosure Employee Assignment Agreements All new employees will be asked to sign a Non-Disclosure, Non-Compete and Assignment Agreement, at the time of their job offer (or earlier) as a condition of their employment. Failure to sign such an agreement may delay or prevent completion of the employment process. This policy also applies to promotions, job changes, or merit increases. Failure to sign an agreement may delay or prevent future promotions, job changes, or merit increases. 1-7. Outside Employment Employees may hold outside jobs as long as they meet the performance standards of their job with Cirque Corporation. All employees will be judged by the same performance standards and will be subject to Cirque Corporation's scheduling demands, regardless of any existing outside work requirements.

If Cirque Corporation determines that an employee's outside work interferes with performance or the ability to meet the requirements of Cirque Corporation as they are modified from time to time, the employee may be asked to terminate the outside employment if he or she wishes to remain with Cirque Corporation. Employees may not receive any income or material gain from individuals outside Cirque Corporation for materials produced or services rendered while performing their jobs. Outside employment that constitutes a conflict of interest is prohibited. Employees are not allowed perform work for another company or industry related to the industry in which the Company is involved with or doing business in or to use Company's confidential information or facilities while working for an outside entity or job.

Section 2 – Operational Policies 2-1. Employee Classifications For purposes of this handbook, all employees fall within one of the classifications below. Full-Time Employees – Employees who regularly work at least 30 hours per week who were not hired on a short-term basis. Part-Time Employees – Employees who regularly work fewer than 30 hours per week who were not hired on a short-term basis. Short-Term Employees – Employees who were hired for a specific short-term project, or on a short-term freelance, per diem or temporary basis. Short-Term Employees generally are not eligible for Company benefits, but are eligible to receive statutory benefits. In addition to the above classifications, employees are categorized as either "exempt, non- exempt, or salaried non-exempt for purposes of federal and state wage and hour laws. Employees classified as exempt do not receive overtime pay; they generally receive the same weekly salary regardless of hours worked. You will be

informed of your classifications upon hire and informed of any subsequent changes to your classifications. 2-2. Employee Service Credit "Length of service" refers to the length of time that our employees spend as active full-time or part-time employees with Cirque Corporation. Service begins on the day you become a full-time or part-time Employee. Length of service may be used in determining certain employee benefits, such as time-off benefits. Employees will not lose credit for service with the Company provided their last day of service was within 90 days of again becoming an active employee. Human Resources will discuss this issue with any rehired employee upon hire. 2-3. Employment and Personnel Records Cirque Corporation maintains a personnel file on each employee. The personnel file includes such information as the employee's job application, resume, records of training, documentation of performance appraisals and salary increases, and other employment records.

Please keep your personnel file up to date by informing Human Resources of any specialized training or skills you may acquire in the future, as well as any changes to address, marital status, etc. as these changes can affect your withholding tax and benefit coverage. Personnel files are the property of Cirque Corporation and access to the information they contain is restricted. Generally, only supervisors and management personnel of Cirque who have a legitimate reason to review information in a file are allowed to do so. With reasonable advance notice, employees may review their own personnel files in Cirque Corporation's offices and in the presence of an individual appointed by Cirque Corporation to maintain the files. 2-4. Alternative Work Schedules Cirque's normal hours of business are Monday - Friday from 8:00am to 5:00pm. Cirque employee Core hours are Monday - Friday 9:00am to 4:00pm. Cirque employees will be considered for alternative work schedules on a case-by-case basis, there may be some positions that will not facilitate an alternative work schedule. Once a manager has approved an alternative schedule, the employee will not be allowed to change their schedule without written approval from their manager. Alternative work schedules must meet the following requirements: Cirque's operational requirements must be met without reducing service to our customers and vendors. · Each operation must be covered during normal business hours. (Monday-Friday from 8:00am – 5:00 pm) · Cost to the company will not increase. · Alternative work schedules will not diminish the ability of Cirque to assign responsibility and accountability to individual employees for performance of their duties. · Alternative work schedules must be set and not vary. All alternative schedules must meet only one (1) of the following schedules: Salary/Exempt employees: o Flex-time, which allows the employee to start later or earlier than 8:00 am and leave later or earlier than 5:00 pm. Flex-time will be a five day work week. Hours may vary daily. o Every other Friday off, in which an employee works a minimum of nine hours per day with every other Friday off. o Tele-commuting, in which an employee may work from home 1 to 5 days per week (also see In Office, Hybrid, Remote work policy 2-4.1). If this option is

in use, the employee is expected to work regular business hours of 8:00am-5:00pm Monday through Friday. o All employees are required to be available during Core hours regardless of work schedule. · Hourly/non-exempt employees: · o Flex-time, which allows the employee to start later or earlier than 8:00 am and leave later or earlier than 5:00 pm. Flex-time will be a five day work week. Hours may vary daily. Daily start-times must begin between 6:00am and 10:00am. Schedule must be approved by the manager. o Half day off, is a 5 day work schedule allowing employee to have one half day off per week. Employees work four (4) nine (9) hour days and one half day each week. The half day can be any day of the week but must be set and approved by the manager. • Employees are NOT allowed to work over 40 hours during any work week without their Manager's approval. When a paid holiday falls on an employee's regularly schedule day off the employee will be given another day off during that pay period. Holiday pay will be paid at a rate of 8 hours per day. Employees must submit a request in writing to their manager if the employee desires to utilize an alternative work schedule The company reserves the right at any time to return an employee participating in an

alternative work schedule to a standard schedule if the employee's schedule is not permitting the department and/or Company to meet its goals or if changes in circumstances necessitate. Human Resource and Senior Managers will work together to ensure that the company's ability to carry on business as usual is not diminished by implementation of this policy. The company reserves the right to change or eliminate the use of alternate work schedules, in part or total, at its sole discretion at any time in the future. 2-4.1. In office Hybrid and Remote work policy Cirque supports three (3) different types of working arrangements, in-office, hybrid and remote. In office – refers to a working arrangement where the employee is required to come into the office on all normal work days.

Hybrid - refers to a working arrangement where the employee may work either from the office or from home but is required to come into the office as needed. Additionally, hybrid employees are required to come into the office once a month for a company update meeting. Core hours of 9:00-4:00 must be followed for that one day. Remote - refers to a working arrangements where the employee works entirely from a remote location and only comes into the office on a case by case basis arranged with the employee's manager Employee working arrangement (in-office, hybrid, or remote) will be specified at time of hire. Technology for enabling Hybrid and Remote work – All employees will be given a set of headphones for doing proper zoom meetings. Any employee who does not have a webcam on their computer, or cannot use the webcam on their computer, will be given a webcam as well. Monthly Company Update Meeting – All hybrid employees are required to be in the office for the full day when a company update meeting is taking place. For this day, the core hours of 9-4 should be observed. Group collaboration sessions, group trainings and company trainings can be very effective on this day. Update meetings will be scheduled at with as much notice as possible. 2-5. Timekeeping Procedures Non-exempt/hourly employees must record the time work begins and ends in the Company's Time and Attendance system, as well as the beginning and ending time of any departure from work, for any non-work-related reason. This includes punching out for lunch if a lunch break is taken. The only exception to clocking out for lunch will be during the monthly Company Lunch meeting. Non-exempt employees may not start work until their scheduled starting time. Altering, falsifying or tampering with time records is prohibited and subjects the employee to discipline, up to and including termination of employment. Exempt employees are required to report full or half days of absence from work for reasons such as leaves of absence, sick leave, vacation, or personal business. It is your responsibility to sign your time record to certify the accuracy of all time recorded. Any errors in your time record should be reported immediately to your Supervisor, who will attempt to correct legitimate errors.